

PETITION - PETITION UNDER Sec. 99-15-59

IN THE COURT

(Write the name of the court with jurisdiction over the matter on the line above. This packet does not hold it and has left it blank.)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

PETITION UNDER Sec. 99-15-59

A. WHAT THE COMMITTED RECORD ESTABLISHES ABOUT THIS ROUTE

This petition is brought on the route the committed route contract records as "Uncharged or unprosecuted misdemeanor - dismissal branch", under Miss. Code Ann. Sec. 99-15-59.

The compiled Mississippi profile records the substance of this route as follows. Under 99-15-59, a person arrested, cited, or held for a misdemeanor and not formally charged or prosecuted within 12 months of arrest, or whose charge was dismissed, may apply to the court with jurisdiction for expungement.

The committed contract records the timing of this route as: relief opens immediately upon dismissal; no elapsed wait applies to this branch.

The committed contract records these conditions on the route: Misdemeanor only; Nothing pending.

B. THE PETITIONER

Name: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself, never from memory.

[C1 - is the matter a misdemeanor] Is the matter a misdemeanor?

.....

.....

[C2 - was the charge dismissed and on what date] Was the charge dismissed and on what date?

.....

.....

[C3 - is anything pending] Is anything pending?

.....
.....

[C4 - what venue or agency] What venue or agency?

.....
.....

[C5 - are there related counts] Are there related counts?

.....
.....

D. THE REQUEST

The petitioner asks the Court to expunge the record of the dismissed misdemeanor charge described above, under Miss. Code Ann. Sec. 99-15-59.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

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Route: obligation:runtime-only:MS:uncharged-misdemeanor-immediate-dismissal-branch-99-15-59

PROPOSED ORDER - PETITION UNDER Sec. 99-15-59

IN THE COURT

(Write the name of the court with jurisdiction over the matter on the line above. This packet does not hold it and has left it blank.)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under Miss. Code Ann. Sec. 99-15-59. The Court, having considered the petition and anything filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED

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(The court signs here if, and only if, it grants the petition.)

Route: obligation:runtime-only:MS:uncharged-misdemeanor-immediate-dismissal-branch-99-15-59

FILING INSTRUCTIONS - PETITION UNDER Sec. 99-15-59

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

FILING INSTRUCTIONS - PETITION UNDER Sec. 99-15-59

WHAT THIS ROUTE IS, AND WHO RUNS IT

The committed route contract records this route as "Uncharged or unprosecuted misdemeanor - dismissal branch", under Miss. Code Ann. Sec. 99-15-59, with outcome mode "participant_packet".

The committed contract names the packet components for this route as: Petition under Sec. 99-15-59; Dismissal order; Proposed order. This packet composes the filing pages; anything on that list that is a RECORD rather than a pleading is a document you obtain and file with the petition.

Who runs it: The participant petitions and the court with jurisdiction decides. This is the DISMISSAL branch of Sec. 99-15-59, and the committed contract states its boundary in terms: 'Dismissal is immediate. Never apply the twelve-month no-charge clock here.' The twelve-month branch of the same section is a different route with its own family.

WHAT YOU DO

- Confirm the branch: the charge was FILED and then DISMISSED. Relief opens immediately on the dismissal.
- Obtain the dismissal order; the committed contract names it as a component of this packet.
- Fill every labelled item from the record, sign and date the petition personally, and file it with the proposed order.

WHAT YOU DO NOT DO

- Do not count twelve months. The committed contract records that the twelve-month clock belongs to the no-charge branch and must never be applied here.
- Do not use this packet where no charge was ever filed. That is the other branch, and it has its own family.
- Do not sign the proposed order.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

No committed record this packet binds states a filing fee, or a fee waiver, for this route. The office that answers both is the clerk's office of the Mississippi court with jurisdiction over the matter, which is the court that handled the dismissed charge. Ask before you go, because a filing you cannot pay for is a filing you cannot make.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

No committed record this packet binds states who must be served on this route, or how. The office that answers it is the clerk's office of the Mississippi court with jurisdiction over the matter.

WHEN TO STOP AND GET HELP INSTEAD

- no charge was ever filed - that is the twelve-month no-charge branch of the same section, and its instrument is not in this packet;
- the matter was anything other than a misdemeanor, which the committed contract records as a condition of this route;
- anything arising from the matter is pending, which the committed contract also records as a condition;
- there are related counts and you are unsure how they are treated, which the committed contract records as a fact this route must collect;
- any immigration question is involved.

Route: obligation:runtime-only:MS:uncharged-misdemeanor-immediate-dismissal-branch-99-15-59